IN THE NATIONAL COMPANY LAW TRIBUNAL NEW DELHI
BENCH AT NEW DELHI -II
C.P. (CAA) 35/ND/2021
Connected with
CA (CAA)/2 (ND)/2021.

(Under Sec. 230 & 232 of the Companies Act, 2013 read with other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements & Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

M/s. ThyssenKrupp Marine Systems (India) Private Limited
... Transferor Company /Petitioner Company No.1

AND

M/S. Atlas Elektronik India Private Limited
... Transferee Company/Petitioner Company No.2

CORAM:
HON'BLE SHRI DHARMINDER SINGH, MEMBER, JUDICIAL
HON'BLE SHRI SAMEER KAKAR, MEMBER, TECHNICAL

ORDER PRONOUNCED ON : 14/09/2022

ORDER

PER: SH. DHARMINDER SINGH, MEMBER (JUDICIAL)

1. This joint petition has been jointly filed by the Petitioner Companies on 21.12.2020 under the provisions of Sections 230 & 232 of the Companies Act, 2013 read with Rule 15(1) of the Companies (Compromise, Arrangements, Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016 for the purpose of approving the proposed Scheme of Amalgamation (for brevity 'Scheme'), as contemplated between the Petitioner Companies and their respective shareholders. The copy of the Scheme has been placed on record.
2. The present petition has been filed jointly by the Transferor Company and Transferee Company (hereinafter together called the "Petitioner

-Sd-

Companies"). It is represented that the registered office of the Petitioner Companies being situated in Delhi, therefore, lied with this Tribunal.

3. A perusal of the petition discloses that the first motion application bearing C.A. No. (CAA) No. 02 /ND/2021 was jointly filed by the Petitioner Companies. Based on the averments made in the said application the Tribunal vide order dated 18.01.2021 dispensed with the requirement of convening the meetings of the equity shareholders, secured creditors and unsecured creditors of the respective Petitioner Companies.
4. The appointed date as fixed for the proposed scheme of Amalgamation is January 01, 2020 or such other date as may be approved by the National Company Law Tribunal or any other competent authority having power to sanction the scheme.
5. The petitioner companies were directed to issue individual notices to the (i) Regional Director, Ministry of Corporate Affairs, (ii) Registrar of Companies, NCT of Delhi and Haryana, (iii) Official Liquidator, Lok Nayak Bhavan, Delhi (iv) concerned income tax department. The Petitioner Companies have filed the affidavit of service dated 18.06.2021 in compliance of the order dated 19.03.2021 affirming that notice of the proposed scheme of amalgamation along with all the annexures and copy of the order dated 04.12.2020 had been served on the Regional Director, Ministry of Corporate Affairs, Registrar of Companies, NCT of Delhi and Haryana, concerned Income-Tax Department and the Official Liquidator respectively and the publication of the public notice on 27.04.2021.
6. The reply of the Regional Director and report of the official liquidator have been filed. The official liquidator in its reply dated 23.07.2021 had stated that on the basis of information submitted by the Petitioner Companies is of the view that the affairs of the aforesaid Transferor Companies do not appear to have been conducted in a manner prejudicial to the interest of its members or to public interest

as per the provisions of the Companies Act, 1956 / the Companies Act, 2013 whichever is applicable.

7. The Income Tax department has not filed its reply. Be that as it may, in order to protect the interest of revenue, it is to be made clear that there shall be no impediment on the power and jurisdiction of the Income Tax Department in recovery of pending Income Tax dues, penalties etc., if any, as provided in the law.
8. The certificate of the statutory auditor of the respective Petitioner Companies certifying that the accounting treatment in the Scheme is in conformity with the accounting standards in terms of Section 133 of the Companies Act, 2013 is on record.
9. We have heard the counsels for the petitioner companies and also considered the representation made by the Regional Director, (NR) and Official Liquidator. From the material on record and after perusing the clarifications and submissions of the Petitioner Companies to the Report and the Report of the OL, the Scheme appears to be fair and reasonable and does not violate any provisions of law and is not contrary to public policy.
10. In view of the foregoing submissions and categorical rulings, and upon considering the approval accorded by the members and creditors of all the petitioner companies to the proposed Scheme, and the submissions of the Regional Director, Northern Region, Official Liquidator there appears to be no impediment in granting sanction to the scheme and scheme appears to be fair and reasonable and is not contrary to the public.
11. Consequently, the sanction is hereby granted to the Scheme of Amalgamation under sections 230-232 of the Companies Act, 2013 and the Company (Compromises, Arrangements and Amalgamations) Rules, 2016. The sanctioned Scheme of amalgamation shall be binding on all the petitioner companies and on all their respective shareholders and creditors.
12. The Petitioner Companies shall also be bound to comply with the statutory requirements in accordance with law. Notwithstanding the

above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of both the petitioner companies.

13. This tribunal further order that upon scheme of Amalgamation coming into effect;

a) That Transferor Companies shall stand automatically dissolved without being wound up and without any requirement of any further act or deed by the parties in accordance with the Act;

b) All the assets and liabilities including taxes and charges, if any and duties of the Transferor Company, shall pursuant to section 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company.

c) Upon the scheme taking effect and after dissolution of the Transferor Company, the Board of Directors of the Transferee Company are hereby authorise to take steps as may be necessary desirable or proper to resolve any questions, doubts or difficulty whether by reason of any directive, order or sanction if National Company Law Tribunal or other concerned/ competent authority (ies) or otherwise arising out of or under this Scheme or any manner therewith.

14. The Petitioner Companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the transferor companies and registered with them and shall consolidate the files of the companies, is accordingly duly approved and sanctioned in terms of the above.

15. Any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.

Let copy of the order be served to the parties.

(SAMEER KAKAR)
MEMBER (T)

(DHARMINDER SINGH)
MEMBER (J)

Pronounced today u/d Rule 151 of NCLT Rules, 2016 as the Hon'ble Member (Technical) Shri. Sameer Kakar is not holding the Court today.

14/9/22
Court Officer